

OFFICIAL MINUTES OF THE REGULAR MEETING OF THE MANASSAS PARK GOVERNING BODY HELD ON TUESDAY, JANUARY 19, 2016 AT 7:00 PM AT MANASSAS PARK CITY HALL, ONE PARK CENTER COURT, MANASSAS PARK, VIRGINIA

Roll Call: Frank Jones, Mayor
Bryan E. Polk, Vice Mayor
Suhas Naddoni
Preston Banks
Jeanette Rishell
Michael Carrera

Absent: Keith Miller

Staff: Lana A Conner, City Clerk
Dean Crowhurst, City Attorney
Kimberly Alexander, City Manager

1. Approval of Agenda:

MOTION: Councilmember Naddoni moved to approve the agenda with Item 7a Berkley Group Rate Change and Contract Amendment being considered after Closed Meeting.
SECOND: Councilmember Polk
VOTE: Unanimously passed

2. Moment of Silence/Pledge of Allegiance: Councilmember Banks

3. Citizens Time: None

4. Recognitions: None

5. Presentation:

5a. Parks & Recreation: Skate Park Analysis and Recommendation: Jay Swisher, Deputy Parks & Recreation Director:

Copy of report made part of the record. Benefits of a Skate park; safe gathering place for youth, promotes a healthy, active lifestyle, positive impact on mental health, reduces criminal behavior, attracts new and unique visitors to community, provides a safe, structured environment for skateboarding, reduces skating activity in non designated areas, reduces damage to public/private property, positive economic impact, low cost of participation. City had a skate park but due to the building of the new community center, had to be removed.

There are three types of skate parks: modular (prefabricated elements), project time is 4-6 weeks; precast concrete project timeline 9-12 months; concrete (Poured-in-Place): project timeline 12 months

It would be located in Costello Park in the open space below Veteran's Parking Lot adjacent to softball fields. Proposed budget \$150,000 turn-key. It would be 4,000/6,000 square feet. Signage and landscape would be additional cost.

Tony Hawk foundation Grant is available to apply for in amount of \$1K-25K. Grant Deadline is June 15, 2016. Councilmember Rishell stated from her research on foundation website even if the average income is in line with their expectation they receive so many applications they indicated not to get anybody's hope up. Of the \$5.2 million that has been awarded, 556 grants was awarded but have received as many as 540 applications in a single year. City changes are pretty slim on getting this grant even if the income is in line.

Mr. Swisher recommends contracting Spohn Ranch to design/build the City's next skate park. A poured-in-place concrete park, equipped with precast components similar to the \$150K design on slide #39, would provide the community the most value for the money. Mr. Swisher recommends navigating the procurement process through HGACBuy. They have a good reputation and work well with the northern Virginia area.

Councilmember Naddoni stated he agrees with Mr. Swisher's recommendation. He likes these skate parks and is fine with either one. They will fit well with the recommendation site.

Councilmember Rishell stated there is no category for maintenance. Mr. Swisher stated that is why it is under affordability because maintenance is important. By far the maintenance will be high on modular and very low on concrete. He had tried to determine an annual amount figure to budget. They keep saying it depends; but for the first 15/25 years you probably will not have to do any maintenance with this skate park. Significant cracking would probably occur during the first year but if it does, the city would be billed at the \$18 sf for traditional concrete work as far as flat work. She is thinking about maintenance because of the half million dollars the city just spent on Signal Hill Water Park. She does not want to set the city up for any recurring cost.

Mr. Swisher stated there will not be onsite staff supervision and signage would indicate that the same as the previous skate park. It will not be fenced or gated. From Mr. Swisher's research maintenance involves taking care of graffiti, trash, and debris. He was told it would be a waste of money to seal the concrete.

Councilmember Rishell stated that we had to cut many things out of last budget cycle for parks & recreation like the LED sign so she wanted to know why this is brought back on agenda. The City Manager stated staff was asked to do a more comprehensive presentation and research and bring it back to Governing Body. Councilmember Naddoni stated this is in the CIP. Councilmember Rishell stated we do not fund everything in CIP. We are looking at increased capacity and funding obligations for schools. This is a beautiful project but not at the present time.

Councilmember Banks stated a skate park would become the focal point of community center. Could we make the space larger and more community oriented? Very few skate parks have coverings. Councilmember Rishell stated the more things you add the more costly the project becomes.

Mayor Jones thanked Jay Swisher for this presentation and this will be considered with budget process.

5b. SSI Update: Steve Mackie, President/CEO: Historically Underutilized Business Zone (HUBZ) Company:

Copy of report made part of the record. They are a small business. This is their annual update on how career resource center is doing in Storehouse. They were certified by SBA in July 2014 and will be due for recertification in July 2017. They are compliant with all program requirements since 2014. Program requirements are small business (they will be a small business for at least five years.); U.S owned & controlled (Mr. Mackie is 90% owner and US citizen), principal office in HUBZone (more people in principal office than you have any other office), and 35% of employees HUBZone Residents (this requirement has been met).

They started year with 34 total employees and ended up with 37 employees. At the high water mark in October they had 44 employees. Variation has to do with contracts coming and going. They have had a 50% turnover in revenue in last twelve months. They just won a huge award last Thursday which will supplement a bunch of revenue going away February 3, 2016. Their goal is to maintain 40% HUBZone employee head count in case they lost someone to illness, etc. before they completed their 40 hours for the month. Non-compliance must be reported to the state and there is no grace.

Financial Benefits: Jobs: 17 HUBZone jobs (11 in Manassas Park) Labor: \$147,000, Tax Revenue \$4,286, Computer Skills Coaching & Job Seeking Services: \$63,750

They had 284 visits by local residents and most requested services were typing (keyboarding) basic skills (92) and computer basic skills (61).

Breast Screening: not well attended. Novant required a doctor's name and number which most of them did not have. Next year they will have the Community Center Free Clinic's Doctor's name and number to hand out. They plan to hold it on a Saturday in the future.

Councilmember Rishell stated it shows there are 19 Manassas Park HUBZone residents and she understands SSI is working from perspective of compliance. City wants SSI to be successful. We are working from the perspective of what is best for the city and what is best for the residents. The HUBZone employees boil down to 11.6% of the hours works by Manassas Park residents. Their only full time employee and office manager is from Manassas which is outside the HUBZone but still swings those numbers. They can legally discriminate for residents of HUBZone only and advertise that on the job position descriptions. They favor Manassas Park residents but are subject to the demands of any particular job. They advertise on Craig's list which is very successful. Half of their people are word of mouth referrals and within Manassas Park. At the end of the day, they must look at the most qualified candidate.

Councilmember Rishell stated they have rented the Stone house for two years for \$1 a year and are coming up on the third year. How long do they plan to continue this arrangement. Mr. Mackie stated he would like to use all five years per agreement. They are very happy where they are and have no plans to move because there is no other commercial real estate within the HUBZone. Councilmember Rishell stated the HUBZone extends to the plaza by the police station and there are available store fronts. Maybe there could be a sliding rent scale that would take them up to a more comparable arrangement within the city. City Attorney stated at present, they have a lease with a certain term.

Mayor Jones stated the \$1 a year is missing the point of the upfront cost that SSI has put into upgrading and refurbishing of the stone house. Mr. Mackie stated that is about \$15,000. If you are looking at this as a public/private venture, and they were here to just occupy an office, and not provide community service, they could go and get rent for a lot less than what they are contributing here in a way of a total buy in. He would be happy to continue the current arrangement. He envisioned that this was they will provide a community service for free to the park and that the rent was the city's contribution to that arrangement. Mr. Mackie finds it is a great arrangement because it provides them with the opportunity to be able to maintain compliance but also train folks toward getting a clearance and full time employment.

Mr. Mackie introduced Jennifer Viatore, assistant office manager, who started out as a high school student who worked as customer service representative working 10 hours a week, 40 hours a month. She is now working half time going to NVCC pursuing an associate degree.

Councilmember Banks is satisfied with the arrangement because of how much SSI contributed to the city. Workforce skills are a huge hurdle for people entering the workforce.

Councilmember Carrera appreciates the commitment he has to the community and the service he provide to the community.

6. Consent Agenda

6a. Approval of Minutes of January 5, 2016

6b. Prince William Health District Contract

MOTION: Councilmember Naddoni moved to approve Consent Agenda as presented.

SECOND: Councilmember Rishell

VOTE: Unanimously passed

7. Unfinished Business:

7a. Berkley Group Rate Change and Contract Amendment:

Moved to Close Meeting with possible action out of closed meeting

7b. Bowman Engineers Task Order for TMDL Action Plan: MS4 Program: Drew Williams, Director of Public Works:

This is a task order from Bowman Engineering, one of the city's on-call consultant engineering firms. As a condition of the City's MS4 Permit, the City was required to develop an Action Plan to meet pollutant reductions to be in compliance with state approved TMDLs (Total Maximum Daily Loads) for the Chesapeake Bay and Bull Run. These TMDLs have been approved by the State and it is a pollution diet that these water bodies can sustain as far as pollution. It is the requirement of the city to meet those requirements. This plan takes those TMDLs levels that have been set by the state and develop an action plan to determine how the city can meet those pollutant reduction levels. The engineering component needs to be completed to demonstrate to the state how the City of Manassas Park will attain compliance with the pollutant reductions. The current permit cycle (2013-2018) requires that the City attain a 5% reduction. The scope of work also will consider reduction levels for the next permit cycle (2018-2023) which requires a 35% reduction. Recommendations that are derived from this report are expected to be a combination of operational adjustments and installing additional water quality system infrastructure. They need to determine what kinds of things needs to occur in the city from an infrastructure standpoint and what are the cost implications for those items. How can that be programmed over time to meet the state requirements? The State has informed the city they are not compliant with meeting these TMDL Action Plan deadline set forth by code of Virginia and General Permit required to be completed by 6/30/2015.

MOTION: Councilmember Naddoni moved to approve Task Order to Bowman Engineering for development of an Action Plan and authorize the City Manager to sign the document.

SECOND: Councilmember Rishell

The City Attorney verified with Drew Williams tonight that the Task Order is based upon an agreement we have with them where they provide on-call services for the City. There are lump sum fees in here and he was concerned because our agreement states they have to use the fee schedule as part of the agreement they entered into with the City. Mr. Williams confirmed this was based upon that fee schedule and he will provide backup to City tomorrow. This is for clarification.

VOTE: Unanimously passed

7c LOVEworks Recommendation: City Manager:

LOVEwork Art and Placement; City received a \$1500 grant from Virginia Tourism to help pay for a "LOVE" sculpture/artwork in the City. The Economic Development Director, Marketing Manager, and Graphic Designer came up with a variety of options, and are recommending the "LOVE" swing. There are several options submitted. Staff is recommending two places where this could be placed; Millicent Tract (highest visibility, great addition to City Center area) and land in front of the Community Center along Old Centreville Road (high visibility). Where ever it is placed, it could be moved at some future date. Councilmember Banks sent over Option 7 and 8. Option 6 was recommended by Staff.

The location in front of City Hall near the white gazebo/pergola area was considered but was ruled out because there is not enough room without taking up some of the parking spaces and this is not city owned property. The area near the Gazebo/Pergola behind City Center at the back of Market Street was discussed but there is little visibility and coordination with private property owners would make it more difficult.

Staff recommends Design Option #1 and it be placed on Millicent Tract.

Mayor Jones asked if this could be placed where the skate park could go in Costello Park so it would be alongside the amenities because that would be a high visibility area. City Center area visibility is limited to those who rent the apartments. The Economic Development Manager is working on projects to be held on the Millicent tract such as farmers market. Councilmember Rishell stated she was thinking of something not far from City Center because we are trying to promote City Center to make it as attractive as possible. This would be a good addition to the City Center area.

MOTION: Councilmember Rishell moved to select Option #1 to be located at Millicent Tract.

SECOND: Councilmember Polk

Councilmember Banks asked why it could not be located at Signal Hill Park. This is a central place and a lot of folks go there. It is located in the County. Councilmember Banks is against this option.

VOTE: Yes: Rishell, Polk, Naddoni, Jones No: Carrera, Banks

8. New Business:

8a. Task Order for Interim Public Works Director: Drew Williams, Berkley Group:

This is Task Order for Drew Williams to serve as Interim Public Works Director Contract Position from The Berkley Group for a three month period and will then continue on a month by month basis at a cost of \$10,800 a month.

These services were not specifically budgeted but the cost is less than the cost of the salary of the previous Public Works Director, and will be moved from public works, water/sewer, and SWM salaries lines to Professional Services.

MOTION: Councilmember Naddoni moved to approve Task Order appointing Drew Williams as interim Public Works Director and authorize the City Manager to execute the document.

SECOND: Councilmember Polk

Councilmember Rishell asked if 20 hours is sufficient. The City Manager stated he will be doing more than 20 hours a week. It will be two/three day's onsite work.

The City Attorney confirmed with Drew Williams that this is based on the current rate schedule we have. He will be traveling so you will have mileage and spending the night in a lodging facility. He plans to stay on Tuesday night and have two days; Tuesdays and Wednesdays.

VOTE: Unanimously passed

Mayor Jones met with Drew Williams and Public Works staff last Wednesday for approximately two hours to answer any questions they might have and see how they were doing. He believes this is the right decision.

8b. Holiday Tree in Costello Park:

Mayor Jones stated he talked with Jay Swisher and Drew Williams about the idea of replacing the old oak tree in Costello Park that fell during a storm with a tree taken from Signal Hill Park. He would like Public Works to identify a suitable evergreen in Signal Park and transport and transplant it to the community center. This would give the city a site for a holiday celebration. At present this is the ending spot for the light parade and this could be a lighting celebration after that.

MOTION: Councilmember Banks moved to authorize Staff to identify and transplant a tree from Signal Hill to Costello Park to be used for holiday celebrations.

SECOND: Councilmember Carrera

VOTE: Unanimously passed

8b. MS4/SWM Personnel recommendation: City Manager:

This is part of TMDL and stormwater management program as a whole. This would place a person on site two days a week through November 5, 2016 which coincides with the Berkley contract terms. At that time, Governing Body would decide if they needed a person to stay on to manage the program. The City Manager would like to get the MS4 program under Community Development rather than public works but need to get the program back up to speed before moving forward.

The position itself is not a requirement for this MS4 program but the work they would be doing is. Mayor Jones stated we approved the Bowman Task Order and this would our focal point for engagement from the city side with the Bowman Task Order.

Drew Williams stated DEQ performed audit of MS4 program in September 2015. There were a number of deficiencies that were found and there is a lot of work that has not been done through recent permit cycle, recent years and reporting requirements. This position would be attacking those and making sure the program is up to speed and the permit conditions are being met and acting as a point person between staff and Bowman to ensure they are meeting their deadlines and everything is moving forward with that. They will not be doing the technical aspect of the engineering but will be doing programmatic and administrative work that there was no staff to dedicate to. The state is going to require that the city enter into an informal agreement with them with time frame stipulated for getting the MS4 program back up to speed and completing the TMDL action plan. This is hand in hand with some of the requirements the state is coming down with as well.

This is overall program management making sure all the permit conditions are being met. This is contract staff so this position could be re-evaluated in November 2016 to see if city still needs someone for this program or if someone from staff could be assigned for this program. This is not a full time position.

The \$39,000 would be for a full year. It is for 64 hours a month. This is the hourly rate in the current contract. The City Attorney stated this person lives locally so they won't need to get mileage and lodging.

The City Manager stated this person is already on the Berkley Group staff that specializes in the MS4 program. This person is managing the Dumfries program. Councilmember Banks asked if we can train our staff to manage this program. The City Manager stated yes if there is someone on staff that has this capability. Mayor Jones stated this is a stop gap measure right now.

MOTION: Councilmember Carrera moved to approve Task Order for MS4 Storm water Management position from the Berkley Group and authorize the City Manager to sign task order.

SECOND: Councilmember Naddoni

VOTE: Unanimously passed

8c. Administrative Assistance Recommendation: City Manager: \$25,650 for 6 months of FY2016:

At this time, city has hired a temporary person that is doing this work with everything going on right now with Keystone and the vacancies city has. This person would be doing a lot of water & sewer assistance and customer services for all of the clients that come into city hall. They would be serving as a receptionist. One requirement of the position is that they would be bilingual. This position would serve as administrative assistance to all of the departments within city hall. They would be assigned procurement and disposition of surplus equipment types of duties.

Councilmember Rishell asked what impact the salary (25/65 from City Manager) would have on the budget. City Manager stated it would put them over budget at this point. She would have to look at some of the departments to move it around. It would be 90% from water & sewer fund, and 10 % general fund.

Councilmember Carrera stated this should be held off until the FY2017 budget. City Manager stated the city would still pay the temporary person for this position. Councilmember Carrera would have no problem with continuing to pay the temp.

The City Manager stated the authorized position transportation/water & sewer project manager will not be filled at this time.

Councilmember Banks stated he liked the multi-functionality of the position and that they can get involved in procurement. His concern is getting everything piped into one function and one department and not being utilized in other areas of need in the city.

Mayor Jones asked about the person coming back from maternity leave who has been assisting Calvin O'Dell. The City Manager stated it doesn't have any effect on this at this point. She will go back to doing permits type of things. She will be doing community development. There is no shortage of work to be done.

Mayor Jones stated if we don't approve the position as a filled position and direct city employee, the City Manager will continue with the temporary position for the duration of the year.

The City Manager did not feel that the Community Development administrative aid would help with public works.

Councilmember Rishell asked if it was more expensive to hire the temporary person rather than the full time person. The City Manager stated it would probably be about the same.

MOTION: Councilmember Naddoni moved to accept recommendation of Staff and approve the addition of this position as presented.

SECOND: Councilmember Banks

VOTE: Yes: Naddoni, Banks, Polk, Rishell, Jones No: Carrera

9. Discussion Items: City Manager & Public Works Director:

9a Public Works Issues and Updates: Drew Williams

The Department of Public Works staff has learned that two critical pieces of equipment require replacement in the very near future. These include Dump Truck #134 and the City's storm sewer flush truck. The Public Works Department has been working to implement an equipment replacement program where fleet vehicles are replaced on a 10-year basis to provide that vehicles are safe, dependable, and are brought to auction in better condition. This also provides a methodical basis intending for repair and maintenance costs not outpace replacement costs, or worse, replacement is done on an emergency, unplanned basis.

Dump Truck #134 is one of two large dump trucks operated by Public Works. This truck is primarily utilized to assist with water/sewer repair work, street maintenance projects, and is critical to the city's snow and ice removal operation. The truck was purchased new in 1999 and currently has 30,000 miles of usage. Staff has been monitoring the condition of the truck for the last few years as rusting has occurred throughout the under-carriage of the vehicle, including the frame and crossmembers. In the winter of 2015/16, it became evident that rust had significantly compromised the structural integrity of the truck that it was removed from service. Rusting has occurred over time due to the nature of use and exposure particularly as a result of salt usage during snow and ice removal operations. This piece of equipment has been taken out of service.

Recommendation: replace with a new dump truck that is identical to the remaining Public Works dump truck. This will allow more versatility by stocking parts for only one type of truck and allow salt spreaders and plows to be used interchangeably. This truck is more specialized than typical stock trucks. It will likely take 3-6 months to have the truck delivered and integrated into operations. The Department is considering options to have an additional dump truck available during this season's snow and ice season, along with considering contract support for snow and ice removal operations. Staff will work with leadership to determine alternative options and cost implications. Staff will look at which option would better suit the City; purchase or lease.

The City will have contractors to help with the snow event that is coming on Friday. Public Works Director feels the city has it covered. One equipment provider is prepared to provide the city with a motor grader and backhoe. The City is prepared to declare snow emergency routes. This will be advertised on city website and TV channel.

Storm Sewer Flush Truck – the City purchased a flush truck in 1995 for maintaining the city's storm sewer system. This piece of equipment has been out of service for a few years requiring significant pump replacement maintenance. It was estimated that repairs to the flush truck would cost approximately \$60,000 - \$70,000. Repairs were not made, and it remained out of service, eventually going to auction in the summer of 2015. The City currently has a sanitary sewer flush truck, but the state requires that sanitary and storm sewer equipment not be co-mingled as it risks contamination of storm sewer lines. City system needs significant maintenance.

Recommendation: ensure that the Sanitary Sewer Flush Truck is not utilized for any storm sewer maintenance. Consider outright purchase of a new flush truck, or consider if there is a lease-purchase option available through contracts or any other public contract that provides for a rider-clause. Staff will continue working with leadership to determine the appropriate options and cost implications.

Skid Steer: This piece of equipment is used for many things such as water & sewer repairs. You attach a drill to the front for assistance there. It helps mill the pavement when city is doing sanitary sewer and water repairs. It is used to load the salt spreaders during snow and ice. It has significant rusting. It has large maintenance items. They have looked at option along with getting some other equipment this weekend having one available onsite to lease at hourly rate approximately \$125 an hour. This would be used to load the salt spreaders continuously over the weekend. Total cost to rent would be approximately \$9,000. It would cost approximately \$46,000 to replace this piece of equipment. The City can purchase this piece of equipment immediately and they will bring it out to the City before the snow storm.

He will look at all equipment for public works during the CIP process. You do not want to be in emergency replacement mode in January.

Mayor Jones stated it does not make sense to rent this equipment for 4 days at \$9,000 when the city can purchase the equipment for \$46,000. He recommends moving forward with purchase. Public Works Director stated that 60% of the cost can come from water & sewer and 20% can be dedicated to stormwater management fund. An e-mail will be sent out outlining the cost and where it comes from in the budget.

MOTION: Councilmember Carrera moved to authorize the purchase of a Skid Steer not to exceed \$50,000 and authorize City Manager to proceed with purchase and bring back for ratification.

SECOND: Councilmember Rishell

VOTE: Unanimously passed

Rugby Road (City owned land): The City of Manassas Park owns a tract of land on the western end of Rugby Road where Public Works crews stockpile stone material to be used on public projects, and where clean waste debris/excavation material is deposited from public works projects. This material comes primarily from water and sewer projects, but also excavation from street maintenance projects (e.g., sidewalk replacement, curb/gutter repair, etc.) This tract has been utilized in this manner for approximately 20 years. This facility is located on a residential street, where residences on the opposite side of Rugby Road are located in Prince William County. Residence owners were told that material would not be placed at the city's yard to exceed the height of the 8' chain link fence when the property began to be utilized in this manner. This material extends above the height of the chain link fence at this time. There is currently minimal space to continue depositing excavation material at this location. It is also difficult to continue stockpiling material for city projects at this site as well.

Staff is considering options available to remove the material, including using city forces to remove the material. This would be a substantial undertaking by city crews as the City does not have the equipment necessary to remove most expeditiously and this will divert staff time away from other essential work programs. While still uncertain, we estimate that the removal of this material could take months to perform. For that reason, it is not a reasonable recommendation to consider utilizing staff to perform this work.

Recommendation: City staff would like to explore the following options and work with City leadership to provide further direction:

- (1) Determine if there are other sites within the City or close by that might be able to receive the excavation material.
- (2) Determine if there are any private entities that might desire this material and remove at no or minimal expense to the City;
- (3) Determine if the City must remove the material, will this require a bid and what is the cost implication.

Councilmember Banks stated when issues like this come up; please let the Governing Body know so they can address them.

The Public Works Director stated he has been tasked with coming up with the organizational assessment trying to figure out where the department is like a base line and where the department should be. Mayor Jones stated when the Director comes up with this assessment, he will schedule a Worksession with the Director to hear the details and focus on the findings.

21502

9b. Budget Priorities Discussion: City Manager:

As the City moves into FY 17 budget deliberations, it would be helpful to know what the Governing Body's priorities are during budget development. They are still waiting for revenues from Keystone. Specifically, are there any "must sees" or "do not includes" that we should be prepared for. City Manager recommended priorities include:

1. Water/Sewer/Customer Service Assistant for City Hall
2. Public Safety Compensation Study Recommendations for Police and Fire
3. Tiered COLA for employees under \$80,000
4. Focus on Capital Projects and IT Infrastructure
5. Employee Training & Retention
6. Strategic Plan Development and Implementation
7. Process Efficiency & Automation (Code Enforcement, Agendas, Budget, etc.)

Mayor Jones stated he did not think that Governing Body had enough information to answer the question from the City Manager. Right now they need a lot more information on public works needs. He asked the City Manager to place these seven items in a spreadsheet and send them out showing things we knew were a priority from the perspective from departments (for example; report tonight on public works). He would like to see department items inserted along with City Manager recommendations. This would be a starting point and then look at budget on broader basis. He believes this should be in a Worksession. Give Governing Body more information so they can rank these items and any other items that might come up.

Councilmember Rishell stated she would like to follow up on what Councilmember Banks said after last year's budget; a need for more transparency when working on the budget.

Councilmember Naddoni stated his number #1 priority for 2017 budget is a ten (10 cent) rate cut in operating expenditures.

Councilmember Carrera stated his number #1 priority is a (5 cent) rate reduction and he believes the library is a component of that.

Mayor Jones asked that Governing Body put their priorities in writing.

There will be an item in CIP for replacement of the Quint which was sold and removed from the City tonight.

9. Manager's Report:

The City Manager read a list of city streets that have been designated as snow emergency routes. Mayor Jones asked that this be placed on city channel and website and to make sure there are no trash receptacles or trash left in street. Parking will be available at Costello Park for anyone that does not have space in their driveway on emergency routes. Utility relocation is underway on Euclid Avenue and Columbia Gas started their work today.

Economic Development: Costello Park: HUBZone: Ryan Gandy, Economic Development Manager: The City Manager stated in conversation with Steve Mackie, SSI, he mentioned several other businesses interested in locating in the HUBZone and possibility of building of some type of office park in Costello Park area on city land. This has come up before.

There is interest in HUBZone.

Councilmember Naddoni stated the prior one had a lot of residential which he was against. The city should not be involved in being a landlord. He is support of any entity wanting to purchase city land and build in the HUBZone park.

Councilmember Banks stated he is in favor of pursuing any options. HUBZone is a good way to increase options for businesses to come here and get them interested. He agrees on anything that will spark interest and have further options.

Mayor Jones stated the lower part of Costello Park that faces Old Centreville Road belongs to city across from post office. City could subdivide the land sell off and developer would build and it would not be a city investment. City would not be involved.

City Manager stated you can look at it two ways; sell the land to developers to build on their own location or development of some type of office park. Mayor Jones is not in favor of city being involved in development of an office park. City should not be in landlord business.

City Manager asked if Staff should actively pursue or approach. Councilmember Rishell stated the City staff should not use their time to pursue but wait and see what comes and evaluate when the time comes.

Councilmember Carrera would like Costello Park to stay green and stay as a park.

There is little other land that could be used in the existing HUBZone configuration. City not opposed but city will not actively pursue development.

Councilmember Rishell stated it would have to be great financial deal for the city. 21501

10. Closed Meeting State Code of Virginia Freedom of Information Act Section 2.2-3711 of the Code of Virginia: Paragraph 3, and 7 at 9:15pm:

MOTION: Councilmember Rishell that the Governing Body go into closed meeting to (i) discuss and consider the disposition city owned real property where discussion in an open meeting would adversely affect the bargaining power or negotiating strategy of the city and consult with the City Attorney pertaining to actual litigation where such consultation and briefing in open meeting would adversely affect the negotiating or litigating posture of the city and regarding three legal matters requiring the provision of legal advice by the City Attorney, pursuant to Paragraph 3, and 7 of Subsection 2.2-3711A of the Code of Virginia.

SECOND: Councilmember Carrera

Councilmember Naddoni left the Closed Meeting at 10:11pm.

VOTE: Unanimously passed

11. Return to Open Session: 10:20pm:

MOTION: Councilmember Carrera

SECOND: Councilmember Rishell

VOTE: Unanimously passed

12. Certification & Action out of Closed Meeting if Necessary

MOTION: Councilmember Carrera moved the following Resolution:

WHEREAS, the Governing Body of the City of Manassas Park has convened a closed meeting on this date pursuant to an affirmative recorded vote and in accordance with the provisions of the Virginia Freedom of Information Act; and

WHEREAS, Section 2.2-3712(d) of the Code of Virginia requires a certification by this public body that such closed meeting was conducted in conformity with Virginia law.

NOW THEREFORE BE IT RESOLVED that the Governing Body of the City of Manassas Park hereby certify that, to the best of each member's knowledge, (i) only public business matters lawfully exempted from open meeting requirements under this chapter and (ii) only such public business matters as were identified in the motion by which the closed session was convened were heard, discussed or considered in the meeting by the public body.

SECOND: Councilmember Rishell

VOTE ROLL CALL: Yes: Carrera, Rishell, Banks, Polk, Jones

7a. Berkley Group Rate Change and Contract Amendment:

MOTION: Councilmember Carrera moved to approve the amended rate structure between the City of Manassas Park and The Berkley Group as discussed in closed meeting.

SECOND: Councilmember Rishell

VOTE: Unanimously passed

Prince William County Library Services:

MOTION: Councilmember Rishell moved to authorize the Mayor to offer a compromise solution to two issues between the City and the County involving the Library Services Agreement and the City's petition for declaratory judgment pertaining to the title of the land located in Manassas Park between Mathis Avenue and Route 28 as discussed between City Manager and County Executive, including the five year term for the Library Services Agreement, in exchange for the County agreeing to quit claim all its right, title and interest in and to the property described above.

SECOND: Councilmember Polk

VOTE: Yes: Rishell, Polk, Banks, Jones No: Carrera Absent: Miller & Naddoni

13. Adjourn: The Mayor adjourned the meeting at 10:20pm.

Approved February 16, 2016